

24SMCV01384 24SMCV01384

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-09-10

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Case Number: 24SMCV01384 Hearing Date: September 10, 2026 Dept: I

The court is not convinced that an adequate showing has yet

been made. Plaintiff's principal

argument is that it needs the PMK deposition.

Plaintiff states that it served a notice for a PMK deposition on July

31, 2026 (along with a request for documents) with the deposition to be held on

August 16, 2026—two months and a half months before the trial. Plaintiff stated in the notice that if the

date was not good for the defense, the defense should suggest alternative

dates. On August 10, 2026, defendants

objected on the ground that the date was unilaterally chosen, apparently

without committing to another date.

Plaintiff states that there is not enough time to get this discovery

done, and it claims that the discovery is necessary. The court's problem is this: the court has no

showing of diligence. The court does not

know why it is that plaintiff waited until July 31, 2026, to serve the PMK

notice and seek documents from the defense.

That was about 5 months before trial and 4 months before the FSC and

about two and a half years after the complaint was filed. The court does not know what efforts

plaintiff had made prior to serving the PMK notice to obtain a mutually

agreeable date. For example, plaintiff

might have been trying to get a date from the defendant for half a year without

any success before serving the deposition notice. That would be a point in plaintiff's

favor. Or plaintiff might have not tried

at all, which makes it appear that plaintiff simply sat on its hands. Without that kind of information, there is no

showing of diligence, and therefore no cause for a continuance. As to the death of the former counsel, that

was at the end of May. The original

stipulation was not made for over three months.

That, too, is a lack of diligence.

Had the request been made in June, the court might have felt

differently.

The court recognizes that the parties have stipulated to this. The court is not trying to be difficult, but the court simply cannot accommodate this. The trial date was set on February 4, 2025—a year and a half ago. At that time, the court verbally warned the parties that there would be no continuances absent truly unforeseen and unforeseeable circumstances, and the need to complete discovery would not be sufficient. This warning is reflected in the minute order of that date, stating that no continuances would be granted “absent extraordinary good cause.” The reason for this is that the court has over 1300 cases on the docket. Because this is an I/C court, the court needs about 3 weeks to try a case on average. If one does the math, and accounting for days on which the court is dark, that means it will take 100 years to try the current case load. Of course, we all know that most cases resolve without a trial or continuance. But even assuming that 95% of cases so resolve, it will take the court 5 years to try the current docket. As the court warned the parties back at the CMC, the court simply has nowhere to put this case.

Accordingly, the application is DENIED. The court will inquire as to how the mediation (ordered at the CMC with the parties’ agreement) went.